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Case Number: 25STCV19779 Hearing Date: June 24, 2026 Dept: 224

Moir v. FCA US, LLC et al.,

TENTATIVE RULING

The demurrer is SUSTAINED with leave to amend. The Motion to Strike is GRANTED, with leave to amend. Plaintiff shall file her Amended Complaint within 20 days.

The Case Management Conference is Continued to November 20, 2026 at 8:30 a.m.

Introduction

On June 30, 2025, Plaintiff filed a Complaint arising out of Plaintiff's warranty contract with Defendant FCA regarding a 2021 Jeep Grand Cherokee, vehicle identification number 1C4RJFAG8MC588057.

On November 3, 2025, Defendant filed the instant Demurrer and Motion to Strike to Plaintiff's Complaint.

On June 12, 2026, Plaintiff filed oppositions.

On June 17, 2026, Defendant filed replies.

Meet and Confer

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (CCP §§ 430.41)

The Declaration of Arya Shirani, executed on November 3, 2025, sets forth the meet and confer efforts of counsel for the Defendant, and counsel's attempts to resolve the disputes informally by telephone. The Court finds that the parties conferred as required by Code of Civil Procedure section 430.41

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action.¿ (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)¿When considering demurrers, courts read the allegations liberally and in context.¿ (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.)¿In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice.¿(Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)¿"A demurrer tests the pleading alone, and not on the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

Sixth Cause of Action: Fraudulent Inducement – Concealment

Duty to Disclose

Defendant argues that Plaintiff has not pled a transactional relationship between FCA and Plaintiff which gives rise to a duty to disclose.

"There are¿'four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.'"¿¿(Id.¿at p. 311.)¿

"[O]ther¿than the first instance, in which there must be a fiduciary relationship between the parties, the other three circumstances in which nondisclosure may be actionable presuppose¿the existence of some other relationship between the plaintiff and defendant in which a duty¿to disclose can arise¿. . .¿A relationship between the parties is present¿[only]¿if there is some sort of¿transaction¿between the parties.¿ (Hoffman v. 162 North Wolfe LLC¿(2014)¿228 Cal.App.4th¿1178, 1187;¿see¿Nissan Motor Acceptance Cases¿(2021) 63 Cal.App.5th¿793¿.)¿¿"Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large."¿¿(Bigler-Engler, supra,¿(2017) 7 Cal.App.5th¿at¿312.)¿

Here, the Court is not persuaded that FCA's written warranty, without more, is sufficient to impose a duty to disclose upon FCA where Plaintiff has not alleged facts indicating any "direct dealings" between the parties. (Complaint, ¶ 7.) "Under California law, manufacturer warranties that accompany the sale of a vehicle without regard to the substantive terms of the sale contract between the buyer and the dealer are independent of the sale contract." (Davis v. Nissan North America, Inc. (2024) 100 Cal.App.5th 825, 837, emphasis added.)

Although Plaintiff's Opposition contends that Plaintiff has pled a "buyer-seller relationship," that "Plaintiff went to an FCA dealership and purchased a Jeep Grand Cherokee" and that "FCA profited" from the sale, these facts are not reflected on the face of the Complaint itself. (Opp., at pg. 1.) For example, Plaintiff never alleges that FCA financed or controlled any sale, or otherwise had a direct interest in the sale of the Vehicle to Plaintiff. Further, while Plaintiff alleges FCA concealed information in its "advertising materials" (Complaint, ¶ 21), Plaintiff has not alleged any factual detail identifying these materials such that it can be inferred that the materials were anything more than communications to the public at large. (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 41 ("Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large."))

While courts do consider the existence of an express warranty in evaluating the duty to disclose, Plaintiff has not set forth any legal authority to indicate that a written warranty, standing alone, constitutes the type of "direct dealings" necessary for such a duty, particularly where there are no facts alleging Plaintiff purchased the Vehicle from a FCA-authorized dealership or other FCA sales representatives, or that FCA's agents directly solicited business from Plaintiff. (Cf. Dhital¿v. Nissan North

America, Inc.,¿(2022)¿84 Cal.App.5th 828, 844 (holding a transactional relationship is sufficiently pled for the purposes of a demurrer where “plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan’s authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers.”))

In other words, although Plaintiff argues that sales by intermediaries do not necessarily disrupt the “transactional relationship” between a manufacturer and a consumer (citing Bader v. Johnson & Johnson (2022) 86 Cal.App.5th 1094, 1132), Plaintiff has not pled any factual detail to support an inference that FCA itself was selling through a dealership, as Plaintiff contends in her Opposition. (Opp., at 5.) At present, the Complaint is completely devoid of facts clarifying the circumstances through which Plaintiff acquired the Vehicle. Plaintiff must allege additional facts to support the existence of a transactional relationship with FCA.

Therefore, the sixth cause of action is insufficiently pled.

Specificity

However, even where a duty exists, a plaintiff must still plead the circumstances of fraudulent concealment with particularity. (Rattagan v. Uber Techs., Inc. (2024) 17 Cal.5th 1, 43-44.)

“‘The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]’ [Citation.]” (Hambrick v. Healthcare Partners Medical Group, Inc. (2015) 238 Cal.App.4th 124, 162.)

Ordinarily, “fraud must be pleaded specifically; general and conclusory allegations do not suffice.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.).

California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim. (Rattagan v. Uber Techs., Inc., 17 Cal. 5th 1, 43–44, 553 P.3d 1213, 1240 (2024) citing Goodman v. Kennedy (1976) 18 Cal.3d 335, 347, 134 Cal.Rptr. 375, 556 P.2d 737; Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 248, 129 Cal.Rptr.3d 874; Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1472, 169 Cal.Rptr.3d 619.) In Rattagan, the court held that it had to determine whether the plaintiff alleged a sufficient factual basis for establishing a duty of disclosure on the part of the defendant independent of the parties' contract. If the duty allegedly arose by virtue of the parties' relationship and defendant's exclusive knowledge or access to certain facts, as the plaintiff alleged there, the Court found that the complaint also had to include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission. “[M]ere conclusionary allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff[ ] ... are insufficient for the foregoing purposes.” (Goodman, at p. 347, 134 Cal.Rptr. 375, 556 P.2d 737.) (Rattagan v. Uber Techs., Inc., 17 Cal. 5th 1, 43–44, 553 P.3d 1213, 1240 (2024)).

Defendant argues that Plaintiff has not pled this cause of action with the requisite specificity. Namely, Defendant argues that Plaintiff ailed to allege the names of the people charged with the duty to disclose facts at the time of sale, including who made any representations directly on behalf of FCA to Plaintiff, what specifically they said or wrote to Plaintiff, or when the representation was made.

FCA relies on the general rule for pleading fraud against a corporation, which requires a plaintiff to allege the identity of the speaker, their authority, to whom they spoke, what they said, and when it was said. (See, e.g., Tarmann v. State Farm Mut. Auto Ins. Co. (1991) 2 Cal.App.4th 153, 157.) However, this rule is inapplicable to a claim of fraudulent concealment. (Alfaro

v. Community Housing Improvement System & Planning Association, Inc. (2009) 171 Cal.App.4th 1356, 1384 ("How does one show 'how' and 'by what means' something didn't happen, or 'when' it never happened, or 'where' it never happened?").) Instead, such details, in the context of a fraudulent concealment claim, "are properly the subject of discovery, not demurrer." (Id. at 1384-85.)

Here, the Court agrees that Plaintiff does not plead the fraudulent concealment

claim with the requisite particularity, though not for the reasons FCA identifies. As discussed above, the Tarmann factors FCA contends Plaintiffs omitted – the identity of the speaker, their authority, to whom they spoke, and what was said and when – do not govern a claim sounding in concealment rather than affirmative misrepresentation. (Alfaro, supra, 171 Cal.App.4th at 1384.) The claim is instead deficient because the First Amended Complaint fails to plead the factors required for a concealment claim under Rattagan. Although Plaintiff alleges that FCA had superior knowledge of the defect through pre-production and post-production testing data; early consumer complaints about the Engine Defect; aggregate warranty data; testing conducted in response to these complaints; as well as warranty repair and part replacements data, (Complaint ¶ 19) the pleading does not identify which advertisements, marketing materials, or representations Plaintiff reviewed, when she reviewed them, or how those materials were prepared or disseminated by FCA as opposed to the dealership. Further, Plaintiff does not allege the general point at which disclosure should or could have been made.

Further, while Plaintiff alleges that FCA's concealment induced her to purchase the vehicle and that she would not have done so had she known of the defect (Complaint ¶ 24-26), the Complaint does not allege any facts establishing Defendant's intent to defraud.

The demurrer is SUSTAINED on this ground, with leave to amend.

Fifth Cause of Action: Negligent Repair

Defendant further demurs to the fifth cause of action in the Complaint for Negligent Repair against Dealer Future Chrysler Dodge Jeep Ram of Concord on the grounds that the Economic Loss Rule bars Plaintiff's claim.

To plead a claim for negligent repair, a plaintiff must allege the elements of negligence. "Ordinarily, negligence may be pleaded in general terms and the plaintiff need not specify the precise act or omission alleged to constitute the breach of duty." (Lopez v. S. Cal. Rapid Transit Dist. (1985) 40 Cal.3d 780, 795; Crouse v. Brobeck (1998) 67 Cal.App.4th 1509, 1532 (a plaintiff need only state what occurred, and generally that the acts were negligently done, but "need not state the specific act or omission constituting negligent conduct.")) Likewise, causation may be alleged "succinctly and generally, unless the pled facts 'do not naturally give rise to an inference of causation…'" (Bockrath v. Aldrich Chemical Co., Inc.¿(1999) 21 Cal.4th 71, 78, internal citations omitted.)¿

In order to plead around the economic loss rule, a party must plead the existence of a duty that arises independent of any contractual duty and independent injury, other than economic loss, that arises from the breach of that duty. (Robinson Helicopter, supra, 34 Cal.4th at 991. 988-91.) "In general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922.)

Here, Plaintiff's negligent repair claim is brought against Dealer Future Chrysler Dodge Jeep Ram only (not FCA US). Plaintiff allegedly delivered the Vehicle to Future for repairs "on at least one occasion." (Complaint, ¶ 60.) Plaintiff generally alleges that Future "owed a duty to Plaintiff to use ordinary care and skill in storage, preparation, and repair" of the Vehicle "in accordance with industry standards." (Id., ¶ 61.) Indeed, "[a]ny individual, partnership, corporation, association, or other legal relationship which engages in the business of providing service or repair to new or used consumer goods has a duty to the purchaser to perform those services in a good and workmanlike manner." (Civ. Code, § 1796.5.) Thus, Plaintiff has sufficiently pled an independent duty.¿

However, Plaintiff's negligent repair claim is devoid of factual detail clarifying how Future acted negligently. Plaintiff alleges Future breached its duty to Plaintiff "by failing to properly store, prepare and repair [the Vehicle] in accordance with industry standards." (Id., ¶ 62.) Plaintiff further alleges Future's "negligent breach of its duties owed to Plaintiff was a proximate cause of Plaintiff's damages." (Id., ¶ 63.) Plaintiff must at least include facts indicating what is alleged to have occurred with enough factual detail to put Future on notice of the claim brought against it. For example, the Complaint is vague and uncertain as to the nature or type of storage and/or repairs that Future was supposedly hired to perform on the Vehicle, and fails to allege how Future conduct deviated from industry norms. Additionally, the Complaint does not allege any facts indicating what type of damages were sustained by Plaintiff. Without more factual detail as to what Future Chrysler Jeep Dodge Ram allegedly did or failed to do, it cannot be inferred that its negligent acts or omissions caused Plaintiff to suffer a particular injury, economic or otherwise. Thus, while the Economic Loss Rule may not necessarily bar Plaintiff's Negligent Repair claim, Plaintiff has not adequately pled her cause of action for negligent repair.¿

The demurrer to the fifth cause of action is SUSTAINED with leave to amend.

Motion to Strike

Defendant moves to strike Plaintiff's prayer for punitive damages from the Complaint on the grounds the Complaint fails to state facts sufficient to support the recovery of punitive damages.

Civil Code Section 3294(a) authorizes the recovery of punitive damages in non-contract cases "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice…

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the party of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code § 3294(c)(1)-(3).)

As reviewed above, the Court finds that Plaintiff's fraud-based claim is not sufficiently pled with regard to specificity to survive general demurrer.

Accordingly, the Court GRANTS Defendant's Motion to Strike Plaintiff's punitive damage request based on Plaintiff's fraudulent concealment claim. Because the Court has allowed Plaintiff leave to amend to address the specificity issues in the sixth cause of action and punitive damages may be awarded upon a properly pled fraud claim (see Civil Code § 3294), the ruling as to Plaintiff's sixth cause of action is without prejudice – Plaintiff may plead punitive damages upon amendment of her sixth cause of action.

Defendant's Motion to Strike Punitive Damages from Plaintiff's Complaint is GRANTED as to the sixth cause of action for Fraudulent Inducement – Concealment, with leave to amend.

Conclusion

The demurrer is SUSTAINED with leave to amend. The Motion to Strike is GRANTED, with leave to amend.

Plaintiff shall file her Amended Complaint within 20 days.

The Case Management Conference is Continued to November 20, 2026 at 8:30 a.m.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.